

23BBCV01231 23BBCV01231

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Case Number: 23BBCV01231 Hearing Date: August 21, 2026 Dept: A

TENTATIVE RULING

AUGUST 21, 2026

MOTION FOR SUMMARY JUDGMENT

OR,

IN THE ALTERNATIVE, SUMMARY

ADJUDICATION

Los

Angeles Superior Court Case # 23BBCV01231

MP: Defendant Universal City Studios LLC

RP: Plaintiffs Victoria Farrington, Angel Shelburne, John
Shelburne, and Kathryn Avila

NOTICE:

The Court

is not requesting oral argument on this matter. The Court is guided by California Rules of Court, Rule 3.1308(a)(1) whereby notice of intent to appear is requested. Unless the Court directs argument in the Tentative Ruling, no argument is required and any party seeking argument should notify all other parties and the court by 4:00 p.m. on the court day before the hearing of the party's intention to appear and argue. The tentative ruling will become the ruling of the court if no argument is received.

Notice

may be given either by email at or by telephone at (818) 260-8412.

ALLEGATIONS:

Victoria

Farrington ("Decedent"), through her successors in interest, Angel Shelburne, John Shelburne, and Kathryn Avila (collectively "Plaintiffs") bring this action against NBCUniversal, LLC and NBCUniversal Media, LLC ("Defendants"). Plaintiffs allege Decedent was injured while visiting Universal Studios ("Universal"), a theme park owned by Defendants, and that these injuries led to her eventual death.

On June

17, 2021, Decedent used her wheelchair at the theme park. To get from the park's "upper lot" to the "lower lot," able-bodied guest could use stairs and an escalator, but they are not suitable for wheelchair bound guests.

There was also an elevator for all guests, but there was a 90-minute wait and an employee did not let Decedent skip to the front of the line to accommodate her wheelchair status.

Plaintiffs allege that Universal's staff gave Decedent the "impossible choice" of waiting 90 minutes for the elevator or using the escalator. Decedent attempted the escalator as directed by the Universal employee, but she fell, was injured, and passed away in February 2022. (SAC, ¶¶11-13.)

The

Second Amended Complaint ("SAC"), filed March 26, 2024, alleges: (1) Negligence, (2) Violation of the Unruh Civil Rights Act, and (3) Wrongful Death.

On July

12, 2024, the Court sustained without leave to amend the Second Cause of Action for Violation of the Unruh Civil Rights Act.

As such, the only remaining causes of action are for Negligence and Wrongful Death.

MOTION

ON CALENDAR:

On March

18, 2026, Defendant Universal City Studios (hereinafter, "Defendant") filed a Motion for Summary Judgment or, in the Alternative, Summary Adjudication. On July 31, 2026, Plaintiffs filed an opposition. On August 10, 2026, Defendant filed a reply.

LEGAL

STANDARD:

The function of a motion for summary judgment or adjudication is to allow a determination as to whether an opposing party cannot show evidentiary support for a pleading or claim and to enable an order of summary dismissal without the need for trial. (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 843.) C.C.P. § 437c(c) "requires the trial judge to grant summary judgment if all the evidence submitted, and 'all inferences reasonably deducible from the evidence' and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law." (Adler v. Manor Healthcare Corp. (1992) 7 Cal.App.4th 1110, 1119.)

As to each claim as framed by the complaint, the defendant moving for summary judgment must satisfy the initial burden of proof by presenting facts to negate an essential element, or to establish a defense. (C.C.P. § 437c(p)(2); Scalf v. D. B. Log Homes, Inc. (2005) 128 Cal.App.4th 1510, 1520.) Courts "liberally construe the evidence in support of the party opposing summary judgment and resolve doubts concerning the evidence in favor of that party." (Dore v. Arnold Worldwide, Inc. (2006) 39 Cal.4th 384, 389.) Once the defendant has met that burden, the burden shifts to the plaintiff to show that a triable issue of one or more material facts exists as to that cause of action or a defense thereto. To establish a triable issue of material fact, the party opposing the motion must produce substantial responsive evidence. (Sangster v. Paetkau (1998) 68 Cal.App.4th 151, 166.)

EVIDENTIARY

OBJECTIONS:

With the reply, Defendant submitted evidentiary objections to Plaintiffs' opposition

evidence. The Court rules as follows:

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Dr. Marvin Pietruszka's Declaration: Objection

Nos. 1-4 are overruled.

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Mark J. Burns, B.E., J.D.'s Declaration:

Objection Nos. 5-9 are overruled. The Court notes that its ruling on the evidentiary objections did not affect the outcome of its ruling.

DISCUSSION:

Defendant

moves for summary judgment on the Complaint or, alternatively, for summary adjudication on the following issues:

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Issue 1: As a matter of law, Plaintiffs' First

Cause of Action for Negligence fail to state a claim upon which relief can be granted because Defendant did not breach any duty owed to Decedent or Plaintiffs.

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Issue 2: As a matter of law, Plaintiffs' First

Cause of Action for Negligence and Third Cause of Action for Wrongful Death fail to state a claim upon which relief can be granted because Plaintiffs cannot meet their burden of proof that Defendant's acts or omissions were a substantial factor in causing Decedent's alleged injuries.

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Issue 3: As a matter of law, Plaintiffs' Third

Cause of Action for Wrongful Death fails to state a claim upon which relief can be granted because Plaintiffs cannot establish that Defendant's alleged acts or omissions caused Decedent's death, where the undisputed evidence establishes that Decedent suffered from numerous significant preexisting medical conditions and her death was caused by end-stage renal disease unrelated to the subject incident.

The elements of a premises

liability and negligence claim are the same: a legal duty of care, breach of that duty, and proximate cause resulting in injury. (Kesner v. Superior Court (2016) 1 Cal.5th 1132, 1158.) "The elements of the cause of action for wrongful death are the tort (negligence or other wrongful act), the resulting death, and the damages, consisting of the pecuniary loss suffered by the heirs. [Citations.]" (Quiroz v. Seventh Ave. Center (2006) 140 Cal.App.4th 1256, 1263.)

Defendant relies on the same material facts for each issue. On June 17, 2021, Angel Shelburne visited Universal Studios Hollywood (the "Park") with his three children and mother/Decedent. (Def.'s Fact 1.) Mr. Shelburne assisted Decedent by pushing the wheelchair while traveling through the Park. (Id. at 2.) The Park is comprised of an "upper lot" and "lower lot," which are separated by a significant elevation change. (Id. at 3.) The Park provides alternative transportation options for guests with mobility limitations, including an elevator that leads to a shuttle pickup area where guests can take a shuttle between the two lots. (Id. at 4.)

Mr. Shelburne approached the elevator with Decedent while his children used the escalator. (Id. at 5.) Plaintiffs claim that a Park employee informed Mr. Shelburne that the shuttle area below was experiencing significant wait times due to COVID-19 capacity restrictions. (Id. at 6.) Per Defendant's policies, an employee advised Decedent that if she was able to stand, she could use the escalator, but that she could not remain seated in the wheelchair while on the escalator. (Id. at 7.) Mr. Shelburne testified that the Park did not require Decedent to use the escalator, but he made the decision to assist Decedent onto the escalator instead of waiting for the shuttle, explaining that using the escalator while holding his mother's hand "seemed doable." (Id. at 8.) Mr. Shelburne testified that when Decedent stepped onto the moving escalator, she lost her balance and fell near the top landing; he then assisted her back to her feet and continued assisting her down the escalator; and she fell a second time at the bottom when she failed to lift her feet. (Id. at 9.)

On February 6, 2022 (eight months later), Decedent passed away due to unrelated causes, as she suffered from advanced chronic kidney disease, which progressed to end-stage renal disease as evidenced by her death certificate. (Id. at 10-11, 13.) Based on Dr. Mark Williams' expert opinions, there is no medical basis to conclude that Defendant's

conduct caused or contributed to Decedent's injuries or death. (Id. at 12.)

A. Breach

Defendant argues that it did not breach any duty of care because Mr. Shelburne and Decedent voluntarily chose to use the escalator as one of the two options to travel between the Park's upper and lower lots, instead of taking the escalator down to a shuttle.

Defendant cites to Mr.

Shelburne's deposition transcript, wherein he testified that Decedent was able to physically walk as of June 17, 2021 and able to get up and down stairs with assistance. (A. Shelburne Depo. at 30:6-8, 48:22-49:4.) With respect to the subject incident, Mr. Shelburne testified:

Q And the employee said the elevators were unavailable. Is that your testimony?

A "I'm sorry. They're unavailable."

Q And then she said the wait below was an hour and a half. Is that correct?

A Yeah.

Q Okay. Did you know what she was referring to when she said the wait below was an hour and a half?

A No. It didn't make sense.

Q Okay. Did you ask her what she was referring to?

A Yeah. I said, "I don't understand." She said, "Below there's an hour and a half wait," and she may have said for the tram rides or something, but later I would understand that.

Q Okay. Then she said, "If your mom can stand, you can take the escalator, hold her hand,

hold the wheelchair"; correct?

A Correct.

Q Did she tell you at any point that you could not take the elevator?

A No. I -- I believe

what she was saying was an unreasonable amount of time. An hour and a half wait seemed quite unreasonable and it seemed doable, her instruction to help my mom use the escalator.

Q And that seemed

doable because your mom was able to walk, stand; right?

A Yeah. I mean, with

-- with assistance. We had her cane that day. We had the wheelchair. We had myself and three kids. So we had a lot of help.

(A. Shelburne Depo. at

45:3-46:8.) Mr. Shelburne testified that

when he was speaking with the Park employee, he understood the employee to state that there was a 90-minute wait for the shuttle as there was no evidence of a wait at the elevator. (Id.

at p.49.) While he understood there was

some form of transport, he did not understand what it would be, and he was unaware of a shuttle before the accident.

(Id. at 57:19-58:9; see also id. at pp.49, 59-60.)

Mr. Shelburne testified that he

trusted the Park employee's instructions of "holding my mom, holding the wheelchair, and going down the escalator."

(Id. at 50:2-11.) He

testified that the Park employee never told him he was not allowed to use the elevator, that there was a 90-minute wait below, and that she instructed him,

"If your mom can stand, you can take the escalator" with instructions to hold

Decedent's hand and hold the wheelchair with the other hand. (Id. at 55:4-17.) He then testified:

Q After you spoke to

the female employee at the elevator, did you make the decision to take your mom on the escalator?

A Yeah. It seemed doable.

(Id. at 63:14-17.)

Defendant thus argues that Mr. Shelburne admitted in his deposition that he and Decedent voluntarily decided to take the escalator rather than wait for the shuttle. Defendant argues that there is no evidence that the escalator posed a dangerous condition or that Defendant engaged in negligent conduct, such that Plaintiff cannot establish breach.

In opposition, Plaintiffs argue that Decedent did not “voluntarily” use the escalator, but rather that she was provided no other option but to use the escalator. Plaintiffs provide additional excerpts of Mr. Shelburne’s deposition:

Q Is it correct that the female employee provided you essentially with two options; one, wait an hour and a half to take the shuttle down below or, two, take the escalator if your mom could stand?

A Yeah. That seemed like an unreasonable wait and doable upon her instruction of transport, transporting my mom on the escalator.

(A. Shelburne Depo. at 51:5-11.) He further testified: “The response from the park employee seemed like the only option to get my mom to my kids with my mom in a wheelchair was to help her down the escalator.” (Id. at 54:10-13.) When asked why he did not decide to wait 90 minutes to take the transportation option, he stated “it just didn’t seem like it was part of something she would – that we – like, it wasn’t offered to us as an option to enter the elevator at that point. ... Number one, so it didn’t seem like an option that I could even wait for an hour and a half; and secondly, my children were already down below and under previous direction from a park employee at Kung Fu Panda that saw me and my kids and my mom, that was his recommendation. ... So, one, didn’t seem like it was an available option; and secondly, it didn’t seem reasonable to wait that long. And then it seemed doable, as I mentioned, the park employee at the elevator giving instructions, ‘If your mom could

stand, you can hold her hand with one of your hands and hold the wheelchair behind you with the other.' That seemed doable." (Id. at 75:5-76:9.) Although Mr. Shelburne testified that he did not see any out-of-service signs by the elevators, the employee had told him, "I'm sorry. They're unavailable." (Id. at 44:23-45:5.)

While Defendant has presented evidence that it provided alternate means to traverse from the upper lot to the lower lot, Plaintiffs have presented opposing evidence that the elevator may have had no wait but that a Park employee told Mr. Shelburne and Decedent the elevator was unavailable and had directed/instructed them on how to use the escalator with Decedent's mobility limitations. Plaintiffs have raised a triable issue of material fact regarding the circumstances of the subject incident. Though an escalator may not in itself be a dangerous condition in the typical sense, the escalator combined with potential inability to take an alternate means of transport and the Park employee's instructions to use the escalator, raise triable issues of material fact regarding whether Defendant breached its duty of care towards Decedent.

As such, the motion will not be granted on this basis.

B. Causation and Decedent's Medical Conditions

Defendant argues that its conduct was not a substantial factor in causing Decedent's injuries or death because there is no nexus between any alleged discriminatory action and Decedent falling while on the escalator. (Mot. at p.16.) Defendant argues that the time lapse from the June 17, 2021 subject incident to Decedent's eventual passing on February 6, 2022 (eight months later) undermine causation and that the medical evidence shows she suffered from renal disease. (Def.'s Ex. C [Decedent's Certificate of Death].)

Defendant provides the expert declaration of nephrologist Mark Williams.

Dr. Williams states that he reviewed Decedent's medical records, which demonstrated that she had a history of pre-existing conditions including but not limited to Type II diabetes, diabetic chronic kidney disease,

hypertension, and chronic renal dysfunction. (Williams Decl., ¶15.) He states that end-stage renal disease (“ESRD”) is a chronic and progressive condition that develops over an extended period of time as kidney function deteriorates and that it is commonly associated with underlying medical conditions such as diabetes, hypertension, and chronic kidney disease. (Id., ¶16.) He states ESRD’s progression occurs over months to years and results from the gradual failure of kidney function. (Id.) He opines based upon his education, training, and experience that Decedent suffered from advanced chronic kidney disease, which progressed to end-stage renal disease. (Id., ¶17.) He states that based upon the available medical evidence, nothing in the records indicates that the conduct alleged in Plaintiffs’ Complaint caused or contributed to Decedent’s medical condition or death. (Id., ¶18.) He opines that her condition and ultimate outcome were the result of underlying medical conditions and that there is no medical basis to conclude that Defendant’s conduct caused or contributed to Decedent’s injuries or death. (Id.)

The lapse in time alone is not sufficient to satisfy Defendant’s initial burden. Although Dr. Williams generally states that nothing in the record indicates that the conduct alleged in Plaintiff’s complaint caused or contributed to Decedent’s death, Dr. Williams has not provided any specific opinions that Decedent’s physical injuries sustained from the subject incident did not and/or could not have caused or contributed to her eventual renal failure or exacerbated her medical conditions such as to cause kidney deterioration. Rather, his declaration essentially restates the Death Certificate’s finding of renal failure as Decedent’s cause of death and explains ESRD, but his declaration fails to address whether or not her physical injuries could have contributed to the renal failure.

In opposition, Plaintiffs provide an opposing expert declaration of Marvin Pietruszka, M.D., showing that there could be a causal connection between Decedent’s physical injuries, which may have exacerbated her underlying health conditions. Dr. Pietruszka states that Decedent’s overall medical condition was characterized by a progressive decline after she suffered the fracture of her distal femur: she became anemic, her diabetes worsened, and

there was a progressive decline in her renal function. (Pietruszka Decl., ¶18.) He states that “[a] femur fracture can worsen kidney function due to surgical stress, and inflammation and may cause complications such as urinary tract infections.

After undergoing surgical repair of the fracture, she had much difficulty ambulating and developed generalized muscle weakness. Eventually, she required the use of a wheelchair. Prior to her injury, she was able to ambulate After the injury, she was no longer ambulatory. It is important to note that prolonged immobility causes renal and cardiovascular dysfunction.” (Id.) Dr. Pietruszka states that it is generally understood that elderly individuals who suffer fractures have slower recovery times, reduced mobility and high risk of complications. (Id., ¶19.) He opines that Decedent’s “decline in the months prior to her death relate to chronic stress resulting from the fracture, which would have caused increased adrenaline and nor-adrenaline production resulting in vasoconstriction, raising blood pressures and damaging glomeruli, ultimately causing her to develop advanced nephrosclerosis. A fracture can cause blood loss, hypoperfusion and kidney ischemia. Chronic stress and pain would have caused an increase in cortisol production, which would have had the additional effects of raising blood glucose levels and also elevating blood pressures. It is the chronic stress related to the fracture that causes the release of inflammatory cytokines, which can further damage tissues. Additionally, it is understood that chronic stress activates the renin-angiotensin-aldosterone system, which can then increase blood pressures causing further damage to the glomeruli of the kidney. Fluid retention can worsen both renal and cardiac failure and can also increase blood pressure. Chronic kidney disease impairs the kidney’s ability to filter sodium and water. This leads to fluid buildup. Ms. Farrington had an enlarged heart and congestive heart failure. Cardiomyopathy is understood to reduce renal perfusion, which can then cause permanent renal injury.” (Id.) Thus, he opines that although Decedent “had multiple preexisting medical conditions, she maintained a level of stability which abruptly resulted in a spiraling downhill course after the fall, ultimately causing her demise. It is my opinion that the fall on the escalator was a substantial factor that precipitated Ms. Farrington’s sudden decline and that but for the fall, she would not have died on February 6, 2022.” (Id.)

Plaintiffs’ opposing medical expert’s declaration shows that the physical injuries Decedent sustained as a result of the subject incident could be causally linked with her progressive

health decline and worsened her renal condition. Thus, Plaintiffs have raised a triable issue of material fact precluding summary judgment or summary adjudication as to causation.

As such, the motion is denied with respect to the First Cause of Action for Negligence. Moreover, the motion is denied with respect to the Third Cause of Action for Wrongful Death as it is derivative of the Negligence claim. Accordingly, the Motion for Summary Judgment or, alternatively, Summary Adjudication is denied.

RULING:

In the event the parties submit on this tentative ruling, or a party requests a signed order or the court in its discretion elects to sign a formal order, the following form will be either electronically signed or signed in hard copy and entered into the court's records.

ORDER

Defendant

Universal City Studios LLC's Motion for Summary Judgment or, in the Alternative, Summary Adjudication came on regularly for hearing on August 21, 2026, with appearances/submissions as noted in the minute order for said hearing, and the court, being fully advised in the premises, did then and there rule as follows:

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MOTION FOR SUMMARY JUDGMENT OR, IN THE ALTERNATIVE, SUMMARY ADJUDICATION IS DENIED.

PLAINTIFF ANGEL SHELBURNE TO GIVE NOTICE.

IT IS SO ORDERED.